IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-513

CP (CAA) No. - 33/230/232/ND/2022

IN THE MATTER OF:

Oscar Institute Pvt. Ltd. And 4th D Pharma Pvt Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 18.01.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Adv Amit Goel, Adv Deepali Mittal
For the Respondent :
For the RD : Ms. Shankari Mishra, Ms. Swechcha Mishra

ORDER

Heard the submissions made by Counsel for the Petitioner. Counsel for the Petitioner has submitted that they have already provided the clarification to the observations made by RD to office of RD on 09.08.2022 as well as Counsel for RD on 14.11.2022. RD's Counsel Email ID is shankarimishra2511@gmail.com. Proxy Counsel for RD has prayed for providing a copy of the same, therefore, Counsel for the Petitioner is directed to provide the same.

With regard to compliances of the Income Tax, the Petitioner's Counsel may take steps for filing last 3 years income tax returns with regard to Petitioner Companies accompanied by an affidavit-cum-undertaking from the Transferee Company that if any tax dues are claimed by the Income Tax Dept, they will be paid as per law. Post this matter on **10.02.2023.**

Sd/- **Sd/-**

(DR. BINOD KUMAR SINHA) **(SHRI P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

Khushboo
18.01.2023